

Creative Software License and Subscription Agreement

Contract ID: PXF-LIC-2024-0930

Licensor: Pixelforge Creative Suite, Ltd. ("Licensor")

Licensee: Contoso Marketing, LLC ("Licensee")

Effective Date: September 30, 2024

1. License Grant

1.1 Licensor grants Licensee a subscription license to the **Pixelforge Creative Suite — Studio Bundle** (design, video, motion, and asset-management applications) for **120 named creative seats**.

1.2 The license is for internal business use only. Licensee may not resell, sublicense, or use the Suite to provide a competing service.

2. Term and Renewal

2.1 **Initial Term.** Two (2) years from the Effective Date, expiring **September 29, 2026**.

2.2 **Renewal.** This Agreement **renews automatically** for successive one-year terms unless cancelled. The next renewal date is **September 30, 2026**.

2.3 **Cancellation Notice.** Either party may cancel renewal by written notice delivered **at least sixty (60) days** before the renewal date (i.e., by **August 1, 2026** for the upcoming term).

3. Fees and Price Changes

3.1 The annual license fee is **USD \$68,400** (\$47.50 per seat/month × 120 seats), billed annually in advance, **net 30**.

3.2 **Renewal Pricing.** The renewal fee for each Renewal Term will be the prior-term fee **increased by seven percent (7%)**. Licensor will state the renewal fee in writing no later than the notice deadline.

3.3 Mid-term seat reductions are not permitted; additions are billed at the current per-seat rate.

4. Data and Content

4.1 The Suite stores Licensee's creative assets and project files ("Content") in Licensor's cloud. Licensor processes only the limited account and usage metadata necessary to operate the Suite and does **not** act as a processor of end-customer personal data on Licensee's behalf.

4.2 Licensor maintains commercially reasonable security and will notify Licensee of any unauthorized access to Content. **No separate Data Processing Addendum applies** to this Agreement.

5. Intellectual Property

Licensee retains all rights in its Content. Licensors retain all rights in the Suite and any feedback-derived improvements.

6. Limitation of Liability

Licensors' aggregate liability is limited to the fees paid in the preceding twelve months. Neither party is liable for indirect or consequential losses.

7. Governing Law

Governed by the laws of the State of New York.

Pixelforge Creative Suite, Ltd. — by S. Mbeki, Enterprise Sales

Contoso Marketing, LLC — by A. Rourke, Creative Operations Lead